

Present:

Mr. Justice S.M. Emdadul Hoque
and
Mr. Justice Bhishmadev Chakrabortty

Death Reference No. 89 of 2015 with
Criminal Appeal No. 9555 of 2015 (arising
out of Jail Appeal No. 177 of 2015.)

The State

..... Petitioner.

-Versus-

Md. Mithu Dewan.

.....Condemned-prisoner.

Mr. Harunur Rashid, D.A.G with
Mr. Kazi Bashir Ahmed, A.A.G with
Mr. Zahid Ahammad (Hero) A.A.G with
Mr. Md. Shafiquzzaman (Rana), A.A.G

..... for the State.

(In the reference and respondents of all the appeals)

Mr. Golam Abbas Chowdhury, Advocate with
Mr. Md. Anowarul Islam, Advocate with
Mr. Safayet Hossain Sajib, Advocates

..... for the appellant.

(In all criminal appeals and Jail Appeal)

**Heard on 13.09.2021, 26.09.2021 and Judgment
on: 29.09.2021.**

S.M. Emdadul Hoque, J:

This death reference has been made under Section 374 of the Code of Criminal Procedure by the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Faridpur for confirmation of the sentence of death awarded upon the condemned-prisoner Md. Mithu Dewan, son of Md. Sukur Ali Dewan convicted on

19.10.2015 in Nari-O-Shishu Nirjatan Daman Case No. 321 of 2010 arising out of Sadorpur Police Station Case No. 07 dated 14.05.2010 corresponding to G.R. No. 48 of 2010 under section 11(Ka)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 sentencing him to death by hanging and to pay a fine of Tk. 15,000/- (fifteen thousand).

Thereafter, the condemned-prisoner filed Jail Appeal No. 177 of 2015 through the concerned jail authority and subsequently converted the same as Criminal Appeal No. 9555 of 2015.

The criminal appeal filed by the condemned-prisoner Md. Mithu Dewan challenging the impugned judgment being heard analogously with the Death reference and disposed of by this single judgment.

The prosecution case as made out by the informant A. Salam Talukder the P.W.1, grand-father of the deceased Dulufa Begum, in short, is that the deceased Dulufa Begum got married to the accused Md. Mithu Dewan before 3 (three) months and the occurrence took place at about 11:00 p.m. on the night of the 13.05.2010 at the dwelling house of Mithu Dewan. At the time of marriage it was settled that the

informant side would pay of Tk. 25,000/- as dowry, among which Tk. 10,000/- was paid at the time of marriage and for the remaining amount of Tk. 15,000/- the accused Md. Mithu Dewan tortured his grand-daughter Dulufa Begum and on the fateful night she was killed by strangulation for the dowry and at about 3:00 a.m. someone from the house of the condemned-prisoner phoned to the mother of deceased and informing that she was killed by the accused for dowry and accordingly on 14.05.2010 at about 5:00 a.m. they went to the house of condemned-prisoner Md. Mithu Dewan but they did not find anyone of the said family in the house and the dead body was lying on the tin-shade hut of the condemned-prisoner Md. Mithu Dewan and saw blood on the neck and chin of the deceased and also saw a bite marks in the left hand and spot containing of blood in the right side of her hand and thereafter he lodged a typed copy written Ejaher with the Sadorpur police Station and the police rushed to the place of occurrence and recovered the dead body. Thereafter the inquest was held and the police sent the dead body to the morgue for autopsy.

Consequently the Sadorpur police station case No. 7 dated 14.05.2010 under section 11(ka)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000, (amended 2003) read with section 201 of the Penal Code was started against the three accused-persons including the condemned-prisoner Md. Mithu Dewan.

Further case of the prosecution, is that, before lodging the Ejaher the father of the condemned-prisoner namely Md. Sukur Ali Dewan purposely lodged U.D. case being No. 9/10 for destroying the actual facts of the case of murder.

The case was investigated by the P.W.10, Sub-Inspector of police A. Alim Mollah of Sadorpur Police Station, Faridpur who visited the place of occurrence, held the inquest of the dead body, sent the dead body to the morgue for autopsy, prepared the sketch map along with separate index, examined the witnesses and recorded their statements under Section 161 of the Code of Criminal Procedure and seized some alamats from the house of the accused Md. Mithu Dewan and after completing all the formalities of the investigation found prima facie case and submitted charge-sheet being C.S. No. 58 dated 31.07.2010 under Section 11 (ka)/30 of the Nari-O-

Shishu Nirjatan Daman Ain, 2000 as amended 2003 against the condemned-prisoner Md. Mithu Dewan and his father Md. Sukur Dewan.

The case record ultimately transmitted to the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Faridpur and renumbered as Nari-O-Shishur Case No. 321 of 2010 and accused No. 2 Md. Sukur Ali Dewan died on 15.05.2012 before framing charge. The accused No. 1 Md. Mithu Dewan surrendered before the court before framing charge and thereafter the court framed charge against the condemned-prisoner Md. Mithu Dewan under section 11(ka)/30 of the Nari-O-Shishu Nirjatan Damar Ain, 2000 as amended 2003 on 18.11.2012 which was read over to him to which he pleaded not guilty and claimed to be tried.

At the trial the prosecution examined as many as 10 (ten) witnesses among the 14 (fourteen) charge-sheeted witnesses and they were duly cross-examined by the defence. But the defence did not adduce any witness.

After concluding the prosecution witnesses the accused-condemned-prisoner was examined under section 342 of the

Panel code which was read over to him to which he claimed his innocence again.

The defence case as could be gathered from the trend of cross-examination of the prosecution witnesses and the examination under section 342 of the Code of Criminal Procedure is total denial of the prosecution case and claimed that the condemned-prisoner was not at all involved with the alleged killing and he has falsely been implicated in the instant case out of grudge and enmity and the condemned-prisoner was a farmer of the locality and he became a victim of circumstances by his enemies.

The trial Court after consideration of the evidence on record found the accused guilty of the charge leveled against him under section 11(ka)/30 of the Nari-O-Shishur Nirjatan Daman Ain, 2000 and sentencing him to death by its judgment and order dated 19.10.2015 and sent all the documents to this Court and made this death reference under section 374 of the Code of Criminal Procedure for confirmation of the sentence of death.

Mr. Zahid Ahammad (Hero), the learned Assistant Attorney General took us through the F.I.R, the charge sheets, the charge, the deposition of the witnesses, the 342 examination, the relevant exhibited documents, the impugned judgment and order and the papers and documents as available on the record.

Mr. Md. Harunur Rashid, the learned Deputy Attorney General appearing on behalf of the State submits that this is a wife killing case and the prosecution has proved the charge leveled against the condemned-prisoner beyond all reasonable doubt. He further submits that there is no any dispute about the date, time and place of occurrence. He further submits that the charge was framed under section 11(ka)/30 of the Nari-O-Shishu Nirjatan Daman, Ain, 2000, since the condemned-prisoner Md. Mithu Dewan killed his wife the victim for non-payment of dowry of Tk. 15,000/- and all the prosecution witnesses in a voice supported the prosecution case that for non-payment of dowry of Tk. 15,000/- the victim was killed by the condemned-prisoner and as such the learned

Tribunal rightly found the guilt of the condemned prisoner and convicted him accordingly.

He further submits that immediately after the occurrence the condemned-prisoner fled away from his house without taking any step to provide treatment and also did not appear on the funeral of the victim and since absconding immediately after the occurrence which also proves the guilty mind of the accused. The learned Deputy Attorney General further submits that though in some cases it has been held that absconsion itself not only the basis to prove the guilty mind of the accused but now it is settled that long absconsion of the husband who from the very beginning fled away from the place of occurrence even did not joined on the following occasion of the deceased which proves the guilty mind of the condemned-prisoner. In support of his argument the learned Deputy Attorney General cited the decisions of the case of Md. Golam Murtuja –versus- The State reported in 24 BLD (AD)-201 and the decision reported in 12 BLC(AD)-155. He further submits that admittedly no eye-witness in the instant case since none of the neighbour of the accused come forward to

depose but now it is settled that the husband is to explain how his wife met with death while she was in his custody and in the instant case the defence totally silent about the said facts, even, it is admitted facts that the dead body of the deceased was found on the cot of the tin-shade hut of the condemned-prisoner and father of the condemned-prisoner filed U.D. case before the aforesaid case to destroy the alamsats of the case of murder and wherein the father of the condemned-prisoner stated that on the said night on hearing shouting he went to the tin-shade hut and found the dead body and though claimed that she committed suicide by hanging but ultimately the police after careful investigation found that case filed by the father of the condemned-prisoner alleging case of suicide was false, in such circumstances of the case it is the admitted facts that the wife was killed in the house of husband and the husband should explain how his wife was killed while she was in his custody. He referred several decisions of our Apex court reported in 12 BLC(AD)-155 and 63 DLR(AD)-134.

The learned Deputy Attorney General further submits that in the instant case the prosecution has been able prove

the case that due to non-payment of dowry of Tk. 15,000/- the condemned-prisoner killed the victim and though the defence duly cross examined the prosecution witnesses but could not find any contrary to their evidence and the trial court rightly found the guilt of the condemned-prisoner. He prayed for accepting the death reference, dismissal of the appeal and upholding the conviction and sentence of the condemned-prisoner.

Mr. Golam Abbas Chowdhury, the learned Advocate along with Mr. Md. Anowarul Islam, and Mr. Md. Safayed Hossain Sajib, Advocates appearing on behalf of the condemned-prisoner submits that the prosecution measurably failed to prove the charge of dowry whereas the tribunal wrongly convicted the condemned-prisoner the same should not be sustained. He further submits that the prosecution failed to prove the case of dowry and the informant though claimed that due to dowry his grand-daughter was killed by the condemned-prisoner but in his deposition he did not specifically mention when the condemned-prisoner demanded dowry, even, the P.W.2 the mother of the deceased also did

not depose in her testimony that the condemned-prisoner claimed dowry even did not mention that after the marriage her daughter was beaten by the condemned-prisoner due to unpaid dowry of Tk.15,000/- and also did not state when the condemned-prisoner claimed the said dowry, furthermore, in her deposition she stated that before the incident the condemned-prisoner came to her house and brought the victim whereas did not claim that on the said day the condemned-prisoner claimed dowry, in such circumstances of the facts it is clear that the prosecution measurably failed to prove the charge of dowry.

He further submits that rest witnesses all are the close relation of the informant and though they deposed that due to dowry the deceased was killed but they also did not claim that in which date and when the condemned-prisoner claimed dowry. He further submits that if the prosecution failed to prove the case of dowry then the conviction under section 11(ka)/30 should not be sustained but the learned Tribunal without considering the material facts at all only relying upon the decisions of the case of Mihir Lal Saha Poddar @ Mihir

Kumar Poddar, Motilal Saha Poddar -versus- Zhunu Rani Saha, reported in 37 DLR (HCD)-227 and the case of Anarul Hoq – versus- The State, reported in 67 DLR(AD)-172 convicted the condemned-prisoner.

The learned Advocate further submits that since the case of dowry has not been proved in such a case the conviction under section 11(ka)/30 should not be sustained relying upon the decision of the case of Anarul @ Anarul Huq – versus- The State, reported in 67 DLR(AD)-172.

He lastly submits that our Apex Court in case of Bangladesh Legal Aid and Services Trust (BLAST) and others- versus- Bangladesh, represented by the Secretary, Ministry of Home Affairs and others, 67 DLR(AD)-185 took view that the section 11(ka) is ultra-virus the constitution, though their lordships did not mention the same in the ordering proportion but which was reflected in paragraph 51 of the said decision.

His alternative submission is that since the charge of dowry was not proved then considering the decisions of our Apex court and since the condemned-prisoner was only 22

years old at the time of commission of offence and he is in death cell for more than 6 years and considering the aforesaid mitigating circumstances the sentence of the death may be altered. He relying upon the decision of the case of Manik – versus- The State and another reported in 21 BLC (AD)-243 and the case of Nazrul Islam (Md) –versus- The State, reported in 66 DLR (AD)-199. He prayed for rejection of the death reference and allowing the appeal and setting-aside the impugned judgment and conviction and sentence passed by the learned Tribunal.

To consider the merit of the case and analyze the facts of the case, let us discuss the main contention of the evidence of prosecution witnesses.

P.W.1 A. Salam Talukder, aged about 55, the grandfather of the deceased, deposed that the occurrence took place at about 11:00 pm of 13.05.2010 the condemned-prisoner Md. Mithu Dewan killed his grand-daughter. He deposed that marriage of the deceased Dulufa Begum was solemnized before 2 months and 3 days from the date of

occurrence and at the time of marriage it was settled that Tk. 25,000/- should be paid for dowry and among which they paid Tk. 10,000/- and for the remaining amount of Tk. 15,000/- the condemned-prisoner Md. Mithu Dewan killed his grand-daughter by strangulation. He further deposed that at midnight i.e. 3:00 a.m. on 14.05.2010 the mother of victim received a phone call from the house of condemned-prisoner about the killing of her daughter. And at about 5:00 a.m. he along with Khaleque Talukder, Dhalu Talukder, Babul Khan, Moslem Khan, Mozibor Talukder and Nasima Begum went to the house of condemned-prisoner and found the dead body of his grand-daughter lying on a cot of the tin-shade hut of condemned-prisoner and saw blood spot on her neck and chin and also found a bite marks on the left hand. He further deposed that while they went to the house of Mithu Dewan none of the family member of the condemned-prisoner was found in the said house. He further deposed that to destroy the case of murder the father of the condemned-prisoner namely Md. Sukur Ali Dewan went to the police station and filed U.D. case but subsequently he filed the case and after

lodging the Ejaher the police came to the house of condemned-prisoner and recovered the dead body from the tin-shade hut and held the inquest of the deceased with the help of Helana alias Halima, he proved the said inquest report as Exhibit No. 2 and his signature as Exhibit No. 2/1. Thereafter the dead body was sent to the morgue for autopsy and after completion of the autopsy he received the dead body and the Janaja Prayer was held in his house and dead body was buried at his graveyard but none of the family member of the accused was participated in the said funeral. He further deposed that the neighbour of accused disclosed that due to dowry the condemned-prisoner killed the victim Dulufa Begum.

In cross-examination of the defence this witness stated that he went to the Bhanga police station and the house of accused situated at Sadorpur police station which was about 2½ miles from his house. In cross-examination he stated that he could not say who informed the matter and they went to the house of the accused of Nazimuddin Howlader Kandi at about 5:00 a.m. and about 200/400 people were present in the said house among them Jamsheer Khalasi, Shah Alam Mollah,

Rashid Mollah were present and they remained present in the said house till the inquest of the dead body. In cross-examination he stated that on the said day at about 9:00 a.m. father of condemned-prisoner namely Md. Sukur Ali Dewan filed U.D. case with the Sodarpur police station which was about 3 miles from the place of occurrence and he filed a computer typed Ejaher. He further stated that he could not memorize the name who written the Ejaher. The condemned-prisoner killed the victim by strangulation and they saw the dead body on the cot of tin-shade hut of the condemned-prisoner.

In cross-examination he stated that P.W.2 was the wife of his son and Khaleque Takulder was his brother, Babul, Baki Miah and Moslem were the neighbours, Jamir Talukder was his nephew, Faruque Chowkider was the husband of his sister and Siraj Talukder was his cousin and they all from Khakanda village under Bhanga police station. He denied the defence suggestion that on the said day the condemned-prisoner Md. Mithu Dewan was not present in the said house and denied the suggestion that nothing was happened on the said night as

per his version. He denied the suggestion that the accused Md. Mithu Dewan did not kill the victim by strangulation.

This witness on recalled deposed that on 14.05.2010 the police seized 2 cubits rope from the house of accused at about 2:00 p.m., he proved the said rope as material Exhibit No. IV. The police prepared seizure list and he proved the said seizure list and his signature as Exhibit No. 6 and 6/1.

This witness also cross-examined by the defence and in cross he stated that the police did not come to his house and the place of occurrence was about 2½ or 3 miles from place of occurrence house and he put his signature in the seizure list on 14.05.2010 at about 12:00 p.m. but subsequently he stated that he put his signature at 2:00 p.m. and at the time of preparing the seizure list about 100/150 people were present there. He denied the suggestions that the police did not seize the said rope in presence of him.

P.W.2 Nasima, the mother of the deceased, deposed that the occurrence took place at about 11:00 p.m. the night of the 13.05.2010 at the house of accused Md. Mithu Dewan

situated at Nazimuddin Howlader Kandi. She identified accused Md. Mithu Dewan on the dock. She deposed that her daughter got married to condemned-prisoner Md. Mithu Dewan before 2 months of the occurrence and it was settled that they should pay Tk. 25,000/- as dowry and among which Tk. 10,000/- was paid at the time of marriage. She deposed that for non-payment of remaining Tk. 15,000/- the accused tortured her daughter Dulufa Begum. She further deposed that at about 3:00 a.m. of the fateful night they came to know that the accused killed her daughter for non-payment of dowry and accordingly she along with others went to the house of Md. Mithu Dewan and saw the dead body of her daughter was lying on the cot of a tin-shade hut of the condemned-prisoner Md. Mithu Dewan and found several injuries on the persons of the deceased and one bite spot was found on the left hand and also found spot of blood on the right hand and injury on the neck and chin of the deceased and thereafter her father-in-law lodged the Ejaher and while they went to the said house none of the family member was present there. Thereafter the police came to the place of occurrence and held the inquest of the

dead body and dead body was brought to the police station. She further deposed that the neighbours of the accused told them that Md. Mithu Dewan killed her daughter by strangulation due to non-payment of dowry.

In cross-examination of the defence this witness stated that she was examined by the police but could not memorize the date. This witness further stated that she disclosed to the police that due to non-payment of dowry of Tk. 15,000/- accused Md. Mithu Dewan killed her daughter. She denied the suggestion that the said fact was not disclosed to the I.O. and denied the suggestion that she did not disclose to the police that she found the dead body on the cot of a tin-shade hut of accused, bite spot on the left hand of the deceased and the neighbours of the accused told them that accused tortured her daughter for dowry. She stated that she did not ask them who phoned to her. She further stated that it is not true that she did not disclose that they went to the house of accused along with Khaleque Talukder, Dalu Talukder, Arshad Talukder, Azizul tempo driver and Babul Khan. This witness admitted that she could not say the name from whom she knew the incident. She

further stated that the neighbours of the accused disclosed that Mithu killed her daughter by strangulation for dowry in presence of them. She stated that the police came to the said house while they went there. She also stated that the accused Mithu came to her house and brought her daughter to her house before two days of the occurrence. This witness denied the suggestion that Mithu Dewan never tortured her daughter for dowry. She denied the suggestion that due to the quarrel between their two families her daughter committed suicide by hanging and she deposed falsely.

P.W.3 Moslem Kha, a neighbour of the informant deposed that he knew the accused Md. Mithu Dewan and identified the accused on the dock. The occurrence took place at about 11:00 p.m. the night of 13.05.2010 at the house of Md. Mithu Dewan in Nazimuddin Howlader Kandi and the marriage was solemnized before 3 months of the occurrence and at the time of marriage the accused demanded Tk. 25,000/- as dowry. For the remaining Tk. 15,000/- victim Dulufa Begum went to her father's house. He further deposed that on 13.05.2010 at about 3:00 a.m. an unknown person

phoned to the mother of the deceased and informed that accused killed her daughter for dowry and he along with mother of Dulufa Begum, Dhalu Talukder, Chela Talukder, Dabir Talukder, Kalam Kha, Babul Kha, grand-father of Dulufa Begum, Mozibor Kha went Chandrapara Bazar by tempo and thereafter went to the house of the condemned-prisoner Md. Mithu Dewan and found the dead body of the victim on the cot of tin-shade hut of the accused Mithu and found spot on the right finger, injury on the neck and chin of the deceased and also found blood bit injury present in the left and right hand of the deceased. He deposed at that time the father of the deceased was in abroad and the grand-father of the deceased lodged the Ejaher and the police rushed to the said house at about 11:00 to 12:00 and held inquest of dead body with the help of one Helana alias Halima and prepared the inquest report and Helana disclosed that she found several injuries on the persons of the deceased and the police sent the dead body to the morgue for autopsy and thereafter the dead body was buried at the graveyard of the informant and the

police examined him and none of the family member of the accused was present in the Janaja prayer.

In cross-examination of the defence this witness stated that he did not go to the house of the deceased Dulufa Begum after her marriage. In cross-examination he stated that accused claimed dowry in his presence and quarrel was happened and he stated the same to the investigation officer. He denied that he found the dead body on the cot of the tin-shade hut of the accused Md. Mithu Dewan. He also stated that he disclosed to the investigation officer about the injury present in the chin, neck and both hands of the deceased and also disclosed about the demanding of dowry by the accused. He denied the defence suggestion that the accused did not claim dowry and they falsely implicated the accused in the instant case and this is a false case and he deposed falsely.

P.W.4 Dhalu Talukder, aged about 75 years, deposed that he knew the informant Salam Talukder and the victim Dulufa Begum the grand-daughter of the informant and the marriage was solemnized before three months of the

occurrence and it was settled that Tk. 25,000/ should be paid as dowry and among which the grand-father of the victim paid Tk. 10,000/- after 2 days of marriage and for remaining Tk. 15,000/- the accused Mithu tortured the victim Dulufa Begum and the occurrence took place at night at about 11:00 p.m. on 13.05.2010 at the house of Md. Mithu Dewan and the accused Mithu claimed Tk. 15,000/ on the said day and since the said dowry could not be paid the accused killed the victim and someone phoned to the mother of the deceased at about 11:00 p.m. and they went to the P.O. house at the dawn on 14.05.2010 along with informant Salam Talukder, Babul Kha, Seraj Talukder, Kalam Talukder, Khaleque Talukder and Moslem Kha and found the dead body was lying on the cot of the hut of the said accused and saw several injuries on the hands, the chin and neck of the deceased and the local people disclosed that for demanding dowry the accused killed the deceased. He identified the accused on the dock.

In cross-examination of the defence he stated that the informant was his cousin and they resided in the same house and two days after the marriage the husband of victim Dulufa

Begum brought the victim to his house and the occurrence took place in the house of Mithu. In cross-examination he stated that victim Dulufa Begum came to their house in several times along with her husband and he was examined by the I.O. after 7/8 days of the occurrence. He denied the suggestion that the deceased was not killed by the accused Mithu for dowry of Tk. 15,000/- and he did not disclose to the police that for the said dowry the accused killed the victim Dulufa. He denied the suggestion that he did not disclose to the I.O. that they found the dead body on the cot of the tin-shade hut of the accused and also did not disclose that they saw several injuries in the hands, chin and neck of the deceased. In cross-examination he stated that he could not memorize how much amount of dowry was paid at the time of marriage and no case was filed about the dowry. He denied the suggestion that the occurrence was not happened in the house of the accused and the accused did not claim dowry. He also denied the suggestion that the dowry was not fixed at the time of marriage. He denied the suggestion that he deposed falsely in

favour of the informant and the accused did not kill the victim Dulufa Begum.

P.W.5 Faruque Chowkider, deposed that he knew the informant and victim and accused Md. Mithu Dewan was the husband of victim Dulufa Begum and the occurrence took place at about 11:00 p.m. the night of 13.05.2010 at the house of the accused Md. Mithu Dewan and they came to know the incident at about 3:00 a.m. of the said night and the marriage was solemnized before 3 months of the incident and it was settled that Tk. 25,000/- should be paid as dowry among which Tk. 10,000/- was paid and the remaining Tk. 15,000/- could not be paid and for the said amount of dowry Dulufa Begum was not brought to the house of the condemned-prisoner and at about 3:00 a.m. of the fateful night he along with Dalu Talukder, Babul Kha, Helana, mother of Dulufa Begum Nasima along with the informant went to the house of accused and found the dead body was lying on the cot of a tin-shade hut of the accused Mithu and saw several injuries on the chin, neck and hands of the deceased and he was examined by the I.O. He identified the accused on the dock and the dead body was

buried at the graveyard of the informant and none of the family member of the accused was found while they went to the place of occurrence and they also did not attend in the funeral prayer of the deceased Dulufa Begum.

In cross examination of the defence this witness stated that the informant was his “~~gv~~ kii” and the place of occurrence was about 5 kilometers from his house. He further stated that none of the male member of the family of accused was present when they went to the house of the accused Mithu Dewan but they found about 20/25 women of the surrounding houses of the said village and he was examined after 1- 1½ months of the incident and it was not true that he did not disclose that the occurrence took place at about 11:00 p.m. on 13.05.2010. He also did not disclose to the police that they pay any amount of dowry and the victim Dulufa Begum did not go to the house of the accused Mithu Dewan. He stated that they came to know the incident at about 3:00 a.m. and it was not true that he did not disclose to the police officer about the said facts. He denied the suggestion that he did not mention to the investigating officer about the injury found on

the persons of the deceased and that the dead body was found at the house of the accused Md. Mithu Dewan. He denied the suggestion that no incident was happened on 13.05.2010 at the house of the accused Mithu Dewan and he did not go to the house of the accused on the next morning and he deposed falsely due to the enmity with the accused and in favour of the informant.

P.W.6 Siraj Talukder alias Chila Talukder, deposed that he knew the informant and the accused was Md. Mithu Dewan and the marriage was solemnized before 3 months of the occurrence and at the time of marriage the accused side demanded dowry of Tk. 25,000/- among which Tk. 10,000/- was paid and Tk. 15,000/- was due and for the aforesaid unpaid dowry the accused Md. Mithu Dewan tortured his wife and sent her in several times to the house of the informant. He deposed that on 13.05.2010 at about 11:00 p.m. Md. Mithu Dewan killed the victim for dowry and they came to know the incident at about 3:00 a.m. of the said night and went to the house of the accused at about 5:00 a.m. along with Dhalu Talukder, Kalam Talukder, Khaleque Talukder, Moslem Kha,

Babul Kha, Jamir Talukder, informant Salam Talukder and mother of the victim Nasima by a tempo and found the dead body on the cot of tin-shade hut of accused Mithu and none of the family member of the accused was in the said house and neighbours of Mithu told that they heard sound from the house of accused Mithu Dewan while he tortured the victim for non-payment of dowry. He also deposed that they found injury on the neck, chin and both hands of the deceased and the informant Salam Talukder lodged the Ejaher and the police rushed to the place of occurrence and prepared the inquest report and he put his signature in the inquest report in serial No. 4 and he proved his signature present in the inquest report as Exhibit No. 2/2 and the dead body was sent to the morgue and the dead body was buried at the graveyard of the informant and none of the family member of the accused was took part in the said funeral prayer and he was examined by the investigation officer.

In cross-examination of the defence this witness stated that the village of Nazimuddin Howlader Kandi was about 3 miles from his house and they were not the witness of killing

and the accused did not claim dowry in his presence and he was examined after one month of the incident. He told the investigation officer that they came to know the death news of the victim at about 3:00 a.m. This witness denied the defence suggestion that he did not disclose the same to the police officer. In cross this witness stated that he saw the dead body lying on the cot of the accused tin-shade hut and further denied that the said fact was not disclosed to the investigating officer. He stated that about 20/50 villagers came to the place of occurrence but he could not say their names and he disclosed to the police officer that the surrounding people told them that the accused Md. Mithu Dewan killed the victim Dulufa for dowry. He denied the suggestion that none of the local people disclosed anything to them and he did not disclose to the police officer that they found injuries on the neck, chin and both hands of the deceased. He also deposed that he knew the Chairman Mozibur Rahman of Char Noshipur Union Parishad who came to the place of occurrence. He denied the suggestion that the accused did not claim dowry of Tk. 25,000/- at the time of marriage and did not pay Tk. 10,000/-

and Tk. 15,000/- was due. He denied the suggestion that he deposed falsely in favour of the informant Salam Talukder who was his cousin.

P.W.7 Doctor S.M. Khabirul Islam, deposed that on 14.05.2010 he was attached at Faridpur Medical College Hospital in forensic department and on the said day at 05:00 p.m. he held the autopsy of the deceased Dulufa Begum aged about 20 years brought by constable No. 325 namely Md. Imarat Hossain and found the following injuries:

(1) One nail scratch mark on the right side of upper neck, ½ "below from the middle of right mandible.

(2) Two nail scratch mark on the left side of upper neck. One is ½ "below from the middle of left mandible another is 1" below from the middle of left mandible.

(3) Two bruises, ½ "X ½" (each) present over the anterior aspect of right arm in its middle part.

(4) Bruise present ¼ "X ¼" over the posterior aspect of left wrist.

And in dissection found: *“extra-vasation of blood found into the subcutaneous soft tissues and muscles over the both sides of upper neck. Larynx and trachea found highly congested. Extravasation of blood found in the subcutaneous soft tissues and muscles on the other mentioned wounds areas, mentioned words were antemortem.”*

And made the following opinion: **“Death was due to asphyxia resulting from throttling which was antemortem and homicidal in nature”.**

He himself wrote the post-mortem report. He proved the said post-mortem report as Exhibit No. 3 and his signature present in the post-mortem report as Exhibit No. 3/1

In cross-examination of the defence this witness stated that he did not mention the time of death and injury since no column in the form. He denied that the injuries mentioned in the post-mortem report caused at the time of holding post-mortem. He denied the suggestion that he did not mention the

time of injury since which was happened at the time of holding post-mortem.

P.W.8 constable No. 325 Md. Imarat Hossain, deposed that he was attached at the Sadorpur police station on 14.05.2010 and he went to the house of the condemned-prisoner Md. Mithu Dewan of Nazimuddin Howlader Kandi with Sub-Inspector Alim Mollah and brought the dead body to the morgue through chalan. He proved the said chalan as Exhibit No. 4 and after completion of the autopsy he received the dead body and handed over the same to the relatives of the deceased. This witness deposed that he handed over the part of wearing cloths i.e. Shari, blouz, and petticoat of the deceased to the I.O. and thereafter the I.O. prepared the seizure list. He proved the said seizure list as Exhibit No. 5 and his signature present in the seizure list as Exhibit No. 5/1 and also proved his signature present in the chalan as Exhibit No. 4(1) and he proved the seized alamats as material Exhibit Nos. I- III.

In cross-examination of the defence this witness stated that the place of occurrence is about 6/7 kilometers from the police station and they went there at about 10:00 to 11:00 a.m. and found the dead body lying on the cot of the tin-shade hut of accused Mithu Dewan and the neighbours were present there and thereafter the dead body was brought to the Sadorpur police station and he could not memorize the name of any of the relatives of deceased who were present there and he was not examined by the I.O. He also stated that the doctor did not hand over to him the three copy of the post mortem report.

P.W.9 Shah Jahan (Baki Miah), aged about 50 years, deposed that he knew the informant Salam Talukder and the victim was the grand-daughter of the informant and she was killed at the house of the accused Md. Mithu Dewan and the informant Salam Talukder lodged the Ejaher. He identified the accused on the dock. He deposed that the police prepared the seizure list of the wearing cloths of the deceased and which was brought by the constable Imarat Hossain and handed over the same to the police officer on 14.05.2010 at about 8:00

p.m. and S.I. Alim Mollah prepared the seizure list and he proved his signature present in the seizure list as Exhibit No. 5/2.

In cross-examination of the defence this witness stated that he was present in the court when P.W.1 was deposed on recalled. There were 3/4 houses in between the house of the informant and him. He was present at the police station when the informant lodged the Ejaher. He denied the suggestion that as he was a journalist purposely present in the police station. He was not examined by the police officer.

P.W.10 A. Alim Mollah, the investigation officer, deposed that on 14.05.2010 he was attached at the Sadorpur police station as a Sub-Inspector. He was entrusted to investigate the case and the Officer-in-charge Mohammad Ali Biswas recorded the case. He proved his signature as Exhibit No. 7. He went to the place of occurrence, prepared the inquest report, sent the dead body to the Morgue of the Faridpur Medical College Hospital for autopsy through Constable Imarat Hossain. He prepared the sketch map along

with separate index and he proved the said sketch map, index and his signatures as Exhibit No. 8-8(ka) and 9-9(ka) respectively. He seized some jute rope which was about 2 ½ cubits and which was used for killing.

He arrested the accused Md. Sukur Ali Dewan and submitted final report of U.D. case filed by Md. Sukur Ali Dewan which was filed with an intention to destroy the evidence of the case. He prepared the seizure list of the wearing cloths of the deceased and proved his signature present in the said seizure list as Exhibit No. 5(3). He also proved the signature of the constable who brought the said cloths from Morgue as Exhibit No. 6(2). He proved his signature present in the inquest report as Exhibit No. 2(3). He collected the post-mortem report and perused the same and after completing all the formalities of the investigation he found prima-facie case against the accused Md. Mithu Dewan and his father Md. Sukur Ali Dewan and submitted charge sheet being No. 58 dated 31.07.2010 under section 11(ka)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000, (amended 2003) read with section 201 of the Penal Code.

In cross-examination of the defence this witness stated that the occurrence took place at the night about 23:00 p.m. on 13.05.2010 and the F.I.R. was lodged on 14.05.2010 at about 10:35 a.m. and in the charge sheet he could not find any allegation against the accused Harun Dewan since not sent up. He did not make Taleb Ali Dewan as witness though his name was mentioned in the sketch map. He examined the witness Nasima who disclosed to him that the accused initially demanded dowry and took dowry and also claimed remaining dowry of Tk. 15,000/-. He stated that at the time of examination the P.W.2 mentioned that a bite injury was found in the left hand and stated that 7 injuries were on the persons of the deceased. He also stated that at the time of examination the P.W.3 Moslem did not mention that the accused Md. Mithu Dewan demanded dowry from deceased Dulufa Begum. This witness denied the suggestion that his investigation was perfunctory and he did not go the place of occurrence and submitted a false charge sheet.

These all are about the evidence on record as adduced by the prosecution.

We have heard the learned Deputy Attorney General, the Advocate of the appellant, perused the impugned judgment, the F.I.R, the inquest report, post-mortem report, the charge, the deposition of the witnesses and all the relevant papers and documents as available on the record.

The prosecution case is that the victim was married to the condemned-prisoner Md. Mithu Dewan before 3 months of the occurrence and the occurrence took place at about 11:00 p.m. of the night of 13.05.2010 at the tin-shade hut of the condemned-prisoner Md. Mithu Dewan and the mother of the deceased P.W.2 was informed the incident at about 3:00 a.m. through mobile by anyone from the house of the condemned-prisoner Md. Mithu Dewan and thereafter they rushed to the place of occurrence along with the witnesses at about 5:00 a.m. and found the dead body of the victim Dulufa Begum lying on a cot of the tin-shade hut of the accused Mithu Dewan and also did not see any of the family member of the accused Mithu Dewan at the place of occurrence.

The further case is that at the time of marriage it was settled that the informant side should pay Tk. 25,000/- as dowry among which Tk. 10,000/- was paid and for the remaining Tk. 15,000/- the accused tortured the victim regularly and lastly on the fateful night she was killed by strangulation by her husband the accused Mithu Dewan.

The further case of the prosecution is that the surrounding people disclosed them that on the said night they heard sound of beating upon the victim by the accused Mithu Dewan for the said dowry of Tk. 15,000/-. In support of the prosecution case the informant the P.W.1, the mother of the deceased the P.W.2 stated the aforesaid facts in their testimony which was also supported by the P.W.4, P.W.5 and P.W.6, though they were close relation of the informant and also the P.W.3, P.W.9 the neighbour of the informant supported the case.

The prosecution side came to know the incident at the midnight at about 3:00 a.m. and they rushed to the house of the accused Mithu Dewan at 5:00 a.m. and found that the

dead body was lying on the cot of the tin-shade hut of the accused Mithu Dewan. The aforesaid witnesses on a voice stated that the marriage was solemnized before three months of the incident and at the time of marriage it was decided that Tk. 25,000/- should be paid as dowry to the accused and among which Tk. 10,000/- was paid at the time of marriage.

We have found that the P.W.1 the grand-father and P.W.2 the mother of the deceased stated that surrounding people told them that due to dowry the accused Mithu killed the victim and the defence cross-examined the said witnesses and gave suggestion that they did not disclose the same to the I.O. the said facts. But the investigation officer P.W.10 in cross stated that the P.W.2 disclosed the said facts to him. Though the P.W.3 claimed that due to dowry the accused Mithu Dewan killed the victim Dulufa Begum but the P.W.10 in cross-examination stated that the said P.W.3 Moslem Kha did not mention in the said facts to him at his examination under section 161 of the code of criminal procedure. The P.W.4, P.W.5 and P.W.6 though claimed and stated that at the time of marriage it was settled that the dowry of Tk. 25,000/- was

fixed and among which they paid Tk. 10,000/- at the time of marriage and for the remaining Tk. 15,000/- the accused tortured the victim regularly and ultimately he killed the victim on the fateful night but the defence side did not give suggestion to P.W.10 that those witnesses did not disclose the said facts to him, so, the aforesaid facts that at the time of marriage it was settled that Tk. 25,000/- should be paid as dowry among which Tk. 10,000/- was paid, as such the said facts remained unchallenged and as such it is presumed that the prosecution succeed to prove the said facts of dowry. The defence though cross-examined those witnesses but also could not find any contrary to their evidence.

The learned Advocate Golam Abbas Chowdhury cited the decision of the case of Mihir Lal Saha Poddar alias Mihir Kumar Poddar, Motilal Saha Poddar -versus- Zhunu Rani Saha, reported in 37 DLR(HCD)-227 and submits that in the instant case the prosecution failed to prove that with regard to the demand of alleged dowry is wholly vain since the prosecution failed to prove that before the date of occurrence the accused claimed dowry and in the cited case the court also considering

the facts that since the appellant failed to prove that the accused claimed dowry before the date of occurrence and quashed the proceedings. Wherein their lordships held: *“We are of the view that the amount allegedly demanded does not satisfy the definition of dowry as under the Act. By merely saying the certain thing was demanded as “Joutuk” the Act is not attracted, for, the thing must strictly answer the description of dowry under the Act. We are of the view that the amount allegedly demanded does not satisfy the definition of dowry as under the Act”.*

The learned Advocate of the appellant cited the decision of the case of Anarul alias Anarul Huq -versus- The State, reported in 67 DLR (AD)-172, wherein their lordships also considering the facts took view that: *“It appears that all of the prosecution witnesses failed to prove that the convict-appellant demanded dowry at the time of causing death of the victim, so, the court converted the charge under section 11(ka) to the section 302 of the Penal Code.”*

We have already considered the material facts that the prosecution witnesses on a voice stated that at the time of marriage the dowry was fixed as Tk. 25,000/- and the informant paid Tk. 10,000/- and for the remaining Tk. 15,000/- the victim was tortured by the accused Md. Mithu Dewan. But the defence side did not challenge the same at their cross-examination and we have already considered the same. Furthermore, though the defence cross-examined the aforesaid witnesses but could not find any contrary to their evidence, so, the aforesaid cited decision is not applicable in the instant case.

Having considered the evidence on record it is our considered view that the prosecution was able to prove the case that the victim was killed at the house of the condemned-prisoner Md. Mithu Dewan. We have examined the evidence of P.W.1 to P.W.10 and all the witnesses in a voice deposed that they found the dead body lying on a cot of tin-shade hut of the condemned-prisoner Md. Mithu Dewan. It is also found from the evidence of the P.W.10 that the father of the condemned-prisoner Md. Sukur Ali filed a U.D. case to

destroyed the case of alleged by the prosecution on the grounds that the victim herself committed suicide by hanging. But after investigation of the case the police on receiving the post-mortem report found that the victim died on the house of the condemned-prisoner and the same was not a case of suicide but murder and accordingly submitted final report and no denial by the defence side that they did not file any U.D. case. Though which was not exhibited documents but on perusal of the charge sheet and the deposition of the P.W. 10 the investigation officer it is found that the accused Md. Sukur Ali filed the said U.D. case alleging that on hearing the shouting from the hut of the condemned-prisoner Md. Mithu Dewan they went there and found that the victim committed suicide by hanging. The doctor the P.W.7 in his deposition proved the post-mortem report and categorically stated that they found:

“(1) One nail scratch mark on the right side of upper neck, ½ “below from the middle of right mandible and (2) Two nail scratch mark on the left side of upper neck. One is ½ “below from the middle of left mandible another is 1” below from the middle of left mandible.” And accordingly, opinioned that:

“Death was due to asphyxia resulting from throating which was antemortem and homicidal in nature”. This witness was cross-examined and the defence made suggestion that the said injury was happened at the time of holding the post-mortem but the doctor denied the said suggestion.

From the aforesaid facts and the evidence of P.W.1 to P.W.6 who on a voice stated that they found the dead body lying on a cot of the tin-shade hut of the condemned-prisoner Md. Mithu Dewan.

In such circumstances of the facts it is our view that at any time from 11:00 p.m. to 3:00 a.m. of the said night the victim was killed in the house of the condemned-prisoner Md. Mithu Dewan. Though in cross-examination the defence tried to say that the condemned-prisoner was not present in the house on the fateful night but in support of the said facts the defence side did not adduce any single evidence, even it is found that the father of the condemned-prisoner filed U.D. case claiming that on hearing sound they went to the room of Mithu Dewan and found that victim committed suicide but not

claimed that the condemned-prisoner was not present in the house which clearly proves that the accused was present in the house on the fateful night. All the witnesses deposed in a voice that they rushed to the house of the accused at the dawn but not only the accused none of the family member of Mithu Dewan was present in the house at that time.

The learned Deputy Attorney General cited the decision of the case of Mahabur Sheikh alias Mahabur -versus- the State, reported in 67 DLR(AD)-54, wherein their lordships held: *“It is by now a well established principle that under section 106 of the Evidence Act, when any fact is especially within the knowledge of any person the burden of proving that fact is upon him. This principle has been applied in many cases where the wife has been found killed in the house of the husband where they reside together. In such circumstances the husband will have to prove by positive evidence that he was absent from the house when his wife was killed or explain by evidence how she came to meet her death.”*

Similar view has been taken in the decision of the case of Gourango Kumar Shaha –versus- The State reported in 2 BLC(AD)-126, wherein their lordships held: *“Thus on a careful consideration of the circumstance as indicated above, we find that the defence plea of alibi having been discarded and the door of the room being kept open and in the absence of any acceptable explanation as to how the wife died in the room of the husband, the only irresistible and natural conclusion will be that it is the husband alone in the circumstances of the case who is guilty of committing murder of his wife. The chain of circumstance coupled with the medical evidence on record having been considered by the learned Judges of the High Court Division, we find that the circumstantial evidence admit of non other hypothesis than the guilt of the petitioner.”*

In the case of The State –versus- Azam Reza, reported in 62 DLR(AD)-406, wherein their lordships held: *“In the instant case, the death of the deceased Joyanti Munshi in the bedroom of her husband accused Azam Reza is not disputed. According to the prosecution she was assaulted to death. On the other hand, the defence is that she committed suicide by hanging.*

The deceased was the wife of the accused who met with death in the bedroom of the accused, while she was living with the accused, the presence of the accused in the house at the material time is not disputed rather is supported and proved by evidence on record and the death of the deceased was within the special knowledge of the accused. The accused came out with the story of suicide by hanging which he failed to prove and as such the High Court Division rightly held the accused guilty of murder.”

Having considered the aforesaid facts and the cited decisions it is our considered view that while the wife of the accused died in the bedroom of the accused then it is the duty of the husband to prove the facts how his wife was killed.

In the instant case though the defence side tried to establish that she committed suicide and the accused was not present in the house but on considering the entire material facts and the evidence on record it is our view that the alleged fateful night the condemned-prisoner was present at his house along with the victim and the victim was killed and the doctor

P.W.7 took view that the cause of death was due to asphyxia from throttling which was ante-mortem and homicidal in nature and defence could not deviated the said witness from his testimony in such a case it is our considered view that the prosecution succeed to prove that the condemned-prisoner committed the offence.

The further submission of the learned Deputy Attorney General is that long absconding proves the guilt mind of the accused relying upon the decision of the case of Md. Golam Murtuja- versus- The State, reported in 24 BLD (AD)-201, wherein the principle settled that: *“In the absence of any other proof of commission of murder of the wife in other way and in the absence of any explanation coming from the side of the husband for the murder of his wife in his custody, and it being proved by evidence that the condemned-prisoner demanded dowry some days before murder of his wife complied with the fact of his abscondance from the house on the night of the occurrence of murder, being proved, the petitioner is guilty for murdering his wife for dowry.”*

And in the case of Alamgir Hossain and other -versus- The State, reported in 22 BLC(AD)-155, wherein their lordships held: *“The absconsion by itself is not conclusive evidence to inter either of guilt or guilty conscience. The fact that the appellants absconded soon after the crime was committed is no evidence by itself. It may only lend weight to other evidence. Abscondence cannot be treated to be corroboration of the confessional statement of other co-accused so as to base thereon the conviction of the absconding accused.”*

From considering the evidence on record it is found that while the informant side went to the house of condemned-prisoner they found the dead body of the victim on the cot of the tin-shade hut of condemned-prisoner Md. Mithu Dewan and none of the family member were present in the house and they all fled away from the house. None of the family member was present at the time of holding inquest, post-mortem and did not attend in the funeral of the deceased and long after two years i.e. on 15.05.2012 of the occurrence the condemned-prisoner Mithu Dewan surrendered before the court which may be considered the guilt mind of the accused.

We have also considered the entire material facts of the case since the defence side tried to prove that the victim committed suicide by hanging and in such a case it is the duty of the husband to explain how his wife was killed while she was with the husband on the fateful night. In such circumstances of the facts it is our considered view that the prosecution able to prove that on the fateful night the deceased was killed in the bedroom of the condemned-prisoner Md. Mithu Dewan.

Having considered the aforesaid facts since the prosecution able to prove the case of dowry and the victim was killed in the bedroom of the condemned-prisoner in such a case the learned Tribunal rightly found the guilt of the condemned-prisoner Md. Mithu Dewan.

The learned Advocate Mr. Golam Abbas Chowdhury lastly submits that in the case of Bangladesh Legal Aid and Services Trust (BLAST) and others- versus- Bangladesh, represented by the Secretary, Ministry of Home Affairs and others, 67 DLR(AD)-185, wherein their lordships after

consideration of the material facts and the series of decisions of our Apex court as well as the decisions of abroad finally took view that sub-section 2 and 4 of section 6 of the of Bishesh Bidhan Ain and sub-section 2,3 of section 34 of the Nari-O-Shishu Nirjatan Daman Ain, 2000, and section 303 of the Penal Code declared Ultra virus of constitution. Though in ordering portion, the court did not mention the section 11(ka) of the Ain of 2000 but in the body of the judgment the same has been considered and took view that only one sentence of death has been provided leaving no discretionary power for the tribunal to award a lesser sentence on extraneous consideration. This provision is to the same extent ultra virus the constitution.

We have also considered the said decision. Though in the said decisions our Apex court took view that the section 11(ka) is the same extent ultra virus the constitution but in ordering portion the court did not declared the said section ultra virus the constitution. In such circumstances of the facts we are unable to accept the said arguments of the learned

Advocate that considering the facts and circumstances of the case a lesser sentence may be awarded.

Furthermore, if the prosecution failed to prove the charge of dowry even then it should not be alter the conviction in another section of the General law since charge was framed in special law. This principle has been decided in the case of The State -versus- Nurul Amin Baiths (absconding) and another, reported in 15 ALR (AD)-151, wherein our Apex court after consideration of the facts took view that: *“The High Court Division sitting in appeal, revision or reference cannot convert or modify the conviction and sentenced awarded under one provision of a special law to a different provision of general law.”*

Though in considering the provision of section 374 of the code of criminal procedure in disposal of the death reference the court has power to confirm the sentence or pass any other sentence wanted by the law or may annul the conviction and convict the accused of any offence, the court can convert the conviction and awarded to try on the same or any amended

charge or may acquitted the accused person. And in several cases though our Apex court altered the conviction but since in the latest case (15 ALR (AD)-151) our Apex court decided that the conviction and sentence awarded in Special Law should not be altered to General Law. In such a case this court has no other option to alter the conviction if the prosecution failed to prove the charge of dowry.

We have already considered that in the instant case the prosecution succeed to prove the charge of dowry and also succeed to prove the case of murder of the victim in the bedroom of the accused on the fateful night and in such circumstances of the facts we are unable to alter the conviction or to commute the sentence relying on the decision of the case of Bangladesh Legal Aid and Services Trust (BLAST) and others- versus- Bangladesh, represented by the Secretary, Ministry of Home Affairs and others, 67 DLR(AD)-185.

Considering the facts and circumstances of the case and the discussions as made above it is our considered view that the prosecution has been able to prove the charge leveled

against the condemned-prisoner Md. Mithu Dewan and the Tribunal rightly found the guilt of the accused.

In the result the death reference is accepted. The conviction and sentence dated 19.10.2015 passed by the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal, Faridpur in Nari-O-Shishu Nirjatan Daman Case No. 321 of 2010 arising out of G.R. Case No. 48 of 2010 corresponding to Sadorpur Police Station Case No. 07 dated 14.05.2010 is hereby upheld.

Consequently the Criminal Appeal No. 9555 of 2015 (arising out of Jail Appeal No. 177 of 2015) is dismissed.

Communicate the impugned judgment and order and send down the lower Court records at once.

Bhishmadev Chakraborty, J:

I agree.

M.R.